

DECISIONS PER CURIAM, ETC., FROM OCTOBER
4, 1937, THROUGH JANUARY 17, 1938.*

No. 32. ROSS, RECEIVER, *v.* KNOTT, TREASURER OF FLORIDA, ET AL. October 4, 1937. M. G. McNair, present Receiver of the First National Bank of Perry, substituted as the party petitioner in place of Iron Ross, former Receiver, on motion of *Mr. George P. Barse* for the petitioner. Reported below: 87 F. (2d) 817.

No. 411. ROYAL INDEMNITY CO. ET AL. *v.* HOAGE, DEPUTY COMMISSIONER, ET AL. October 4, 1937. Frank A. Cardillo, present Deputy Commissioner for the District of Columbia, United States Employees' Compensation Commission, substituted as a party respondent in place of Robert J. Hoage, former Deputy Commissioner, on motion of *Mr. Frank H. Myers* for the petitioners. Reported below: 67 App. D. C. 142; 90 F. (2d) 387.

No. —, original. EX PARTE ALBERT LÉVITT. Motion for leave to file a petition for an order requiring Mr. Justice Black to show cause why he should be permitted to serve as an Associate Justice of this Court. Decided October 11, 1937. *Per Curiam*: The grounds of this motion are that the appointment of Mr. Justice Black by the President and the confirmation thereof by the Senate of the United States were null and void by reason of his ineligibility under Article I, Section 6, Clause 2, of the Constitution of the United States, and because there was

*MR. JUSTICE CARDOZO participated in the session of December 10, 1937, but, because of illness, was absent throughout the rest of the period covered by this volume. MR. JUSTICE BLACK took no part in the consideration or decision in respect of judgments or orders announced on October 11, 1937, or prior thereto.

For decisions on applications for certiorari, see *post*, pp. 663, 682; for rehearing, *post*, p. 771.

no vacancy for which the appointment could lawfully be made. The motion papers disclose no interest upon the part of the petitioner other than that of a citizen and a member of the bar of this Court. That is insufficient. It is an established principle that to entitle a private individual to invoke the judicial power to determine the validity of executive or legislative action he must show that he has sustained or is immediately in danger of sustaining a direct injury as the result of that action and it is not sufficient that he has merely a general interest common to all members of the public. *Tyler v. Judges*, 179 U. S. 405, 406; *Southern Ry. Co. v. King*, 217 U. S. 524, 534; *Newman v. Frizzell*, 238 U. S. 537, 549, 550; *Fairchild v. Hughes*, 258 U. S. 126, 129; *Massachusetts v. Mellon*, 262 U. S. 447, 488. The motion is denied. *Mr. Albert Lévytt, pro se.*

No. —, original. EX PARTE PATRICK HENRY KELLEY. Motion for hearing on the title of Mr. Justice Black as a member of this Court. Decided October 11, 1937. *Per Curiam*: The motion is denied. *Ex parte Albert Lévytt, supra.* *Mr. Patrick Henry Kelley, pro se.*

No. 99. EUREKA PRODUCTIONS, INC. v. LEHMAN, GOVERNOR, ET AL. Appeal from the District Court of the United States for the Southern District of New York. Decided October 11, 1937. *Per Curiam*: The motion of the appellees to affirm is granted and the order denying an interlocutory injunction is affirmed. (1) *Alabama v. United States*, 279 U. S. 229, 231; *United Gas Co. v. Public Service Comm'n*, 278 U. S. 322, 326; *National Accounting Co. v. Dorman*, 295 U. S. 718. (2) *Mutual Film Corp. v. Ohio Industrial Comm'n*, 236 U. S. 230, 240, 241; *Mutual Film Corp. v. Kansas*, 236 U. S. 248, 258. *Mr. Henry Pearlman* for appellant. *Mr. Henry Epstein* for appellees. Reported below: 17 F. Supp. 259.

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No. 100. *PURE OIL Co. v. OKLAHOMA TAX COMMISSION*. Appeal from the Supreme Court of Oklahoma. Decided October 11, 1937. *Per Curiam*: The appeal herein is dismissed for the want of a substantial federal question. *Continental Baking Co. v. Woodring*, 286 U. S. 352, 372, 373; *Hicklin v. Coney*, 290 U. S. 169, 174-177; *Aero Transit Co. v. Georgia Commission*, 295 U. S. 285, 290, 291; *Evans Terry Co. v. Mississippi*, 296 U. S. 538. MR. JUSTICE SUTHERLAND took no part in the consideration or decision of this case. *Mr. Alvin Richards* for appellant. No appearance for appellee. Reported below: 179 Okla. 479; 66 P. (2d) 1097.

No. 120. *WALLS v. NORTH CAROLINA*. Appeal from the Supreme Court of North Carolina;

No. 376. *DALLAO v. LOUISIANA*; and

No. 377. *UGARTE v. LOUISIANA*. Appeals from the Supreme Court of Louisiana. Decided October 11, 1937. *Per Curiam*: The appeals herein are dismissed for the want of jurisdiction. Section 237 (a), Judicial Code, as amended by the Act of February 13, 1925, 43 Stat. 936, 937. Treating the papers whereon the appeals were allowed as petitions for writs of certiorari, as required by § 237 (c), Judicial Code, as amended, 43 Stat. 936, 938, certiorari is denied. The motions for leave to proceed further herein *in forma pauperis* are denied. *Tommie Walls, pro se*. *Mr. Henry P. Viering* for appellant in No. 376. *Mr. Loys Charbonnet* for appellant in No. 377. No appearance for appellees. Reported below: No. 120, 211 N. C. 487; 191 S. E. 232; Nos. 376 and 377, 187 La. 392; 175 So. 4.

No. 150. *WITZELBERG v. CINCINNATI ET AL.* Appeal from the Supreme Court of Ohio. Decided October 11, 1937. *Per Curiam*: The motion of the appellees to dis-